

STATE OF NEW YORK

8635--B

2025-2026 Regular Sessions

IN ASSEMBLY

May 22, 2025

Introduced by M. of A. ROSENTHAL, TAYLOR, TAPIA -- read once and referred to the Committee on Judiciary -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Judiciary in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the court of claims act, in relation to the contents of claims

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 11 of the court of claims act is amended by adding two new subdivisions e and f to read as follows:

e. Subdivision b of this section shall not apply to a claim brought against any party alleging intentional or negligent acts or omissions by a person for physical, psychological, or other injury or condition suffered as a result of conduct which would constitute a sexual offense as defined in article one hundred thirty of the penal law committed against a child, incest as defined in section 255.25, 255.26, or 255.27 of the penal law committed against a child, or the use of a child in a sexual performance as defined in section 263.05 of the penal law, or a predecessor statute that prohibited such conduct at the time of the act, which conduct was committed against a child.

f. Subdivision b of this section shall not apply to a claim brought against any party alleging intentional or negligent acts or omissions by a person for physical, psychological, or other injury or condition suffered as a result of conduct which would constitute a sexual offense as defined in article one hundred thirty of the penal law or incest as defined in section 255.25, 255.26, or 255.27 of the penal law committed against any person who was eighteen years of age or older.

§ 2. This act shall take effect immediately and shall apply to:

(a) any claim commenced on or after the effective date of this act;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 (b) any claim pending on or after the effective date of this act; and
2 (c) any claim that was dismissed prior to the effective date of this
3 act for failure to specify the nature of the claim, the time when it
4 arose, the place where it arose, the items of damage or injuries claimed
5 to have been sustained, or the total sum claimed, provided that such
6 dismissal is being appealed or can be appealed as of the effective date
7 of this act.